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►B REGULATION (EC) No 1333/2008 OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL

of 16 December 2008

on food additives

(Text with EEA relevance)

(OJ L 354, 31.12.2008, p. 16)

Amended by:

		Official Journal		
		No	page	date
► <u>M1</u>	Commission Regulation (EU) No 238/2010 of 22 March 2010	L 75	17	23.3.2010
► <u>M2</u>	Commission Regulation (EU) No 1129/2011 of 11 November 2011	L 295	1	12.11.2011
► <u>M3</u>	amended by Commission Regulation (EU) No 1152/2013 of 19 November 2013	L 311	1	20.11.2013
► <u>M4</u>	Commission Regulation (EU) No 1130/2011 of 11 November 2011	L 295	178	12.11.2011
► <u>M5</u>	Commission Regulation (EU) No 1131/2011 of 11 November 2011	L 295	205	12.11.2011
► <u>M6</u>	Commission Regulation (EU) No 232/2012 of 16 March 2012	L 78	1	17.3.2012
► <u>M7</u>	Commission Regulation (EU) No 380/2012 of 3 May 2012	L 119	14	4.5.2012
► <u>M8</u>	Commission Regulation (EU) No 470/2012 of 4 June 2012	L 144	16	5.6.2012
► <u>M9</u>	Commission Regulation (EU) No 471/2012 of 4 June 2012	L 144	19	5.6.2012
► <u>M10</u>	Commission Regulation (EU) No 472/2012 of 4 June 2012	L 144	22	5.6.2012
► <u>M11</u>	Commission Regulation (EU) No 570/2012 of 28 June 2012	L 169	43	29.6.2012
► <u>M12</u>	Commission Regulation (EU) No 583/2012 of 2 July 2012	L 173	8	3.7.2012
► <u>M13</u>	Commission Regulation (EU) No 675/2012 of 23 July 2012	L 196	52	24.7.2012
► <u>M14</u>	Commission Regulation (EU) No 1049/2012 of 8 November 2012	L 310	41	9.11.2012
► <u>M15</u>	Commission Regulation (EU) No 1057/2012 of 12 November 2012	L 313	11	13.11.2012
► <u>M16</u>	Commission Regulation (EU) No 1147/2012 of 4 December 2012	L 333	34	5.12.2012
► <u>M17</u>	Commission Regulation (EU) No 1148/2012 of 4 December 2012	L 333	37	5.12.2012
► <u>M18</u>	Commission Regulation (EU) No 1149/2012 of 4 December 2012	L 333	40	5.12.2012
► <u>M19</u>	Commission Regulation (EU) No 1166/2012 of 7 December 2012	L 336	75	8.12.2012
► <u>M20</u>	Commission Regulation (EU) No 25/2013 of 16 January 2013	L 13	1	17.1.2013

▼ **M4**

E number of the additive	Name of the additive	Flavouring categories to which the additive may be added	Maximum level
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▼ **M115**

E 334–337 and E 354	Tartaric acid – tartrates (Table 8 of Part 6)	All flavourings	20 000 mg/kg singly or in combination in the flavouring and 400 mg/kg in the final product expressed as the free acid
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▼ **M4**

E 338 – E 452	Phosphoric acid — phosphates — di-, tri- and polyphosphates (Table 6 of Part 6)	All flavourings	40 000 mg/kg (singly or in combination expressed as P ₂ O ₅) in flavourings
E 392	Extracts of rosemary	All flavourings	1 000 mg/kg (expressed as the sum of carnosol and carnosic acid) in flavourings
E 416	Karaya gum	All flavourings	50 000 mg/kg in flavourings

▼ **M53**

E 423	Octenyl succinic acid modified gum arabic	Flavouring-oil emulsions used in categories 03: edible ices; 07.2: Fine bakery wares; 08.3: Meat products, only processed poultry; 09.2: Processed fish and fishery products including molluscs and crustaceans and in category 16: Desserts excluding products covered in categories 1, 3 and 4.	500 mg/kg in the final food
		Flavouring-oil emulsions used in category 14.1.4: Flavoured drinks, only flavoured drinks not containing fruit juices and in carbonated flavoured drinks containing fruit juices and in category 14.2: Alcoholic beverages, including alcohol-free and low-alcohol counterparts.	220 mg/kg in the final food
		Flavouring-oil emulsions used in categories 05.1 Cocoa and Chocolate products as covered by Directive 2000/36/EC, 05.2: Other confectionery including breath freshening microsweets, 05.4: Decorations, coatings and fillings, except fruit based fillings covered by category 4.2.4 and in category 06.3: Breakfast cereals.	300 mg/kg in the final food

▼ **M53**

E number of the additive	Name of the additive	Flavouring categories to which the additive may be added	Maximum level
		Flavouring-oil emulsions used in category 01.7.5: Processed cheese.	120 mg/kg in the final food
		Flavouring-oil emulsions used in category 05.3: Chewing gum.	60 mg/kg in the final food
		Flavouring-oil emulsions used in categories 01.8: Dairy analogues, including beverage whiteners; 04.2.5: Jam, jellies and marmalades and similar products; 04.2.5.4: Nut butters and nut spreads; 08.3: Meat products; 12.5: Soups and broths, 14.1.5.2: Other, only instant coffee and tea and in cereal based ready-to-eat-dishes.	240 mg/kg in the final food
		Flavouring-oil emulsions used in category 10.2: Processed eggs and egg products.	140 mg/kg in the final food
		Flavouring-oil emulsions used in categories 14.1.4: Flavoured drinks, only non carbonated flavoured drinks containing fruit juices; 14.1.2: Fruit juices as defined by Directive 2001/112/EC and vegetable juices, only vegetable juices and in category 12.6: Sauces, only gravies and sweet sauces.	400 mg/kg in the final food
		Flavouring-oil emulsions used in category 15: Ready-to-eat savouries and snacks.	440 mg/kg in the final food

▼ **M4**

E 425	Konjac	All flavourings	<i>quantum satis</i>
E 432 – E 436	Polysorbates (Table 4 of Part 6)	All flavourings, except liquid smoke flavourings and flavourings based on spice oleoresins ⁽²⁾	10 000 mg/kg in flavourings
		Foodstuffs containing liquid smoke flavourings and flavourings based on spice oleoresins	1 000 mg/kg in final food
E 459	Beta-cyclodextrin	Encapsulated flavourings in:	
		— flavoured teas and flavoured powdered instant drinks	500 mg/l in final food

▼ **M4**

E number of the additive	Name of the additive	Flavouring categories to which the additive may be added	Maximum level
		— flavoured snacks	1 000 mg/kg in foodstuffs as consumed or as reconstituted according to the instructions of the manufacturer

▼ **M31**

E 473	Sucrose esters of fatty acids	Flavourings for water based clear flavoured drinks that belong to category 14.1.4	15 000 mg/kg in flavourings, 30 mg/l in the final food
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▼ **M4**

E 551	Silicon dioxide	All flavourings	50 000 mg/kg in flavourings
E 900	Dimethyl polysiloxane	All flavourings	10 mg/kg in flavourings
E 901	Beeswax	Flavourings in non-alcoholic flavoured drinks	200 mg/l in flavoured drinks

▼ **M124**

E 999	Quillaia extract	All flavourings used in the following categories:	
		05.2: Other confectionery including breath refreshing microsweets	4 mg/kg in the final food (expressed as saponins)
		05.3: Chewing gum	2 mg/kg in the final food (expressed as saponins)
		12.5: Soups and broths	2 mg/l in the final food (expressed as saponins)
		14.1.5: Coffee, tea, herbal and fruit infusions, chicory; tea, herbal and fruit infusions and chicory extracts; tea, plant, fruit and cereal preparations for infusions, as well as mixes and instant mixes of these products	1,2 mg/l in the final food (expressed as saponins)
		15.1: Potato-, cereal-, flour- or starch-based snacks	0,2 mg/kg in the final food (expressed as saponins)

▼ **M4**

E 1505	Triethyl citrate	All flavourings	3 000 mg/kg from all sources in foodstuffs as consumed or as reconstituted according to the instructions of the manufacturer; individually or in combination. In the case of beverages, with the exception of cream liqueurs, the maximum level of E 1520 shall be 1 000 mg/l from all sources
E 1517	Glyceryl diacetate (diacetin)		
E 1518	Glyceryl triacetate (triacetin)		
E 1520	Propane-1, 2-diol (propylene glycol)		

▼ **M4**

E number of the additive	Name of the additive	Flavouring categories to which the additive may be added	Maximum level
E 1519	Benzyl alcohol	Flavourings for:	
		— liqueurs, aromatised wines, aromatised wine-based drinks and aromatised wine-products cocktails	100 mg/l in final food
		— confectionery including chocolate and fine bakery wares	250 mg/kg from all sources in foodstuffs as consumed or as reconstituted according to instruction of the manufacturer

(1) ► **M82** Proportionality rule: when combinations of propyl gallate, TBHQ, and BHA are used, the individual levels must be reduced proportionally. ◀

(2) Spice oleoresins are defined as extracts of spices from which the extraction solvent has been evaporated leaving a mixture of the volatile oil and resinous material from the spice.

PART 5

Food additives in nutrients

Section A

▼ **M122**

— Food additives added in nutrients except in nutrients intended to be used in foodstuffs listed in Part E, point 01.10, of Annex II and foodstuffs for infants and young children listed in Part E, point 13.1, of Annex II:

▼ **M4**

E number of the food additive	Name of the food additive	Maximum level	Nutrient to which the food additive may be added	Can be used as a carrier?
E 170	Calcium carbonate	<i>quantum satis</i>	All nutrients	Yes
E 260	Acetic acid	<i>quantum satis</i>	All nutrients	

▼ **M20**

E 261	Potassium acetates	<i>quantum satis</i>	All nutrients	
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▼ **M4**

E 262	Sodium acetates	<i>quantum satis</i>	All nutrients	
E 263	Calcium acetate	<i>quantum satis</i>	All nutrients	
E 270	Lactic acid	<i>quantum satis</i>	All nutrients	
E 290	Carbon dioxide	<i>quantum satis</i>	All nutrients	

▼ **M4**

E number of the food additive	Name of the food additive	Maximum level	Nutrient to which the food additive may be added	Can be used as a carrier?
E 296	Malic acid	<i>quantum satis</i>	All nutrients	
E 300	Ascorbic acid	<i>quantum satis</i>	All nutrients	
E 301	Sodium ascorbate	<i>quantum satis</i>	All nutrients	
E 302	Calcium ascorbate	<i>quantum satis</i>	All nutrients	
E 304	Fatty acid esters of ascorbic acid	<i>quantum satis</i>	All nutrients	
E 306	Tocopherol-rich extract	<i>quantum satis</i>	All nutrients	
E 307	Alpha-tocopherol	<i>quantum satis</i>	All nutrients	
E 308	Gamma-tocopherol	<i>quantum satis</i>	All nutrients	
E 309	Delta-tocopherol	<i>quantum satis</i>	All nutrients	
E 322	Lecithins	<i>quantum satis</i>	All nutrients	Yes
E 325	Sodium lactate	<i>quantum satis</i>	All nutrients	
E 326	Potassium lactate	<i>quantum satis</i>	All nutrients	
E 327	Calcium lactate	<i>quantum satis</i>	All nutrients	
E 330	Citric acid	<i>quantum satis</i>	All nutrients	
E 331	Sodium citrates	<i>quantum satis</i>	All nutrients	
E 332	Potassium citrates	<i>quantum satis</i>	All nutrients	
E 333	Calcium citrates	<i>quantum satis</i>	All nutrients	
▼ M115				
E 334–337 and E 354	Tartaric acid – tartrates (Table 8 of Part 6)	1 000 mg/kg singly or in combination in the nutrient preparation	All nutrients	